

D. Application of Prohibition.

1. The City prohibition against threats and acts of violence applies to all City personnel, contract and temporary workers, customers and anyone else who may be in or on City property or any place where City personnel work or otherwise conduct City business. Violations of this policy by any individual may be followed by legal action as appropriate.

2. Violation by an employee of any provision of this policy may lead to appropriate disciplinary action, up to and including termination, as provided in Rule 40 (Disciplinary Action).

3. The City may also seek a Temporary Restraining Order or Injunction on behalf of City workers if the situation warrants such action.

E. Incident Reporting Procedures. Employees must immediately report to their supervisor or department director whether they have been a victim of, or have witnessed, workplace violence. The supervisor or department director will immediately report the matter to the Human Resources Director. The Human Resources Director or designee will document the incident, including the employee names(s), date/time, location, incident description, witness names and statements, description of unidentified parties, description of the act(s) and/or behavior arising from the incident, action taken, and provide any other relevant information regarding the incident. The Human Resources Director or designee will take appropriate steps to provide security, such as: placing the employee alleged to have engaged in workplace violence on administrative leave, pending investigation; asking any threatening or potentially violent person to leave the site; or immediately contacting an appropriate law enforcement agency. The Human Resources Director will see that reported violations of this Policy are investigated as necessary.

Rule 45 Employee Drug and Alcohol Use Policy - Drug-Free Workplace

A. Policy.

1. It is City policy that employees shall not be under the influence of, or be in possession of alcohol or unauthorized drugs, while on City property, at work locations or while on duty or subject to being called to City duty, or sell or provide unauthorized drugs or alcohol to any other employee, or to any person while such employee is on duty or subject to being called, nor have their ability to work impaired as a result of the use of alcohol or drugs.

2. While use of medically prescribed medications and drugs is not a violation of this policy, failure by the employee to notify his/her supervisor before beginning work, when taking medications or drugs which could foreseeably interfere with the safe and effective performance of duties or operation of City equipment can result in discipline, up to and including termination. In the event there is a question regarding an employee's ability to safely and effectively perform assigned duties while using such medications or drugs, clearance from a qualified physician may be required.

3. The City may notify the appropriate law enforcement agency that an employee may have illegal drugs in his/her possession or in an area not jointly or fully controlled by the City.

4. Refusal to submit immediately to an alcohol and/or drug analysis when requested by City management or law enforcement personnel, or refusal to submit to a search of personal property if requested by law enforcement personnel may constitute insubordination and may be grounds for discipline, up to and including termination.

5. Employees reasonably believed to be under the influence of alcohol or drugs shall be prevented from engaging in further work and shall be detained for a reasonable time until they can be safely transported from the work site. A City-sponsored employee assistance program is available to employees for voluntary consulting or referral.

6. All drug and alcohol tests shall be conducted in accordance with the requirements of the Americans with Disabilities Act, the California Fair Employment and Housing Act and any other applicable Federal and/or State statutes and regulations.

B. Definition of Drugs. The term “drugs” means over-the-counter drugs; substances controlled by statute or regulation, such as those available only by prescription of a licensed physician, dentist or other licensed practitioner; and illegal or “street” drugs.

C. Notification of Drug Use. An employee who is using an over-the-counter or prescription drug which may impair his/her ability to perform work safely and efficiently must report such use to his/her Supervisor. The employee’s supervisor will place him/her in an alternative position, if available, or on leave of absence until he/she is no longer using or affected by that drug.

D. Alcohol or Drug Test. When a supervisor or manager has a reasonable suspicion that any employee is using or is under the influence of drugs or alcohol, that employee may be required to submit to a blood, urine or other testing or examination designed to detect such use, and must, within twenty-four (24) hours of request, provide bona fide verification of a current valid prescription in the employee’s name for any potentially impairing drug or medication identified when a drug screen/test is positive. If the employee refuses to consent to submit to, or fails to otherwise cooperate in the testing/examination process, the employee will be subject to discipline, up to and including dismissal.

E. Reasonable Suspicion. “Reasonable suspicion” to test exists if, based on objective factors, a reasonable person would believe that the employee is under the influence of drugs or alcohol at work. Examples of objective factors, include, but are not limited to: unusual behavior, slurred or altered speech, body odor, red or watery eyes, unkempt appearance, unsteady gait, lack of coordination, sleeping on the job, a pattern of abnormal or erratic behavior, a verbal or physical altercation, puncture marks or sores on skin, runny nose, dry mouth, dilated or constricted pupils, agitation, hostility, confused or incoherent behavior, paranoia, euphoria, disorientation, inappropriate wearing of sunglasses, tremors, an accident involving a City vehicle, equipment or other property, or other evidence of recent drug or alcohol use.

F. Right to Search. The City reserves the right to search, without employee consent, all areas and property of the City in which the City maintains joint control with the employee or full control so long as one of the following occurs: the area/property is searched in the employee's presence; the area/property is searched with the employee's consent; a valid search warrant has been obtained; or the employee has been notified that a search will be conducted. The City may enlist the assistance of law enforcement personnel in connection with the enforcement of this policy.

G. Violation of Policy. If the test results are positive for drugs or alcohol or if an employee has otherwise violated this policy, the employee may be subject to discipline, up to and including termination.

H. Assistance Programs. If an employee has a drug or alcohol abuse problem, the employee is encouraged to seek help through drug and alcohol treatment programs. More information on employee assistance for drug and alcohol abuse is available in the Human Resources Department. Leaves of absence and/or other accommodations may be provided by the City pursuant to Federal and/or State law.

I. Agreement to Comply with Policy. Every employee shall sign a statement of his/her agreement to follow the requirements of this Drug-Free Workplace Policy. Employees must, as a condition of employment, abide by the terms of this policy and report any conviction under a criminal drug statute for violations occurring on or off City premises while conducting City business. A report of conviction must be made to the Human Resources Director within five (5) days after conviction, as mandated by the Drug-Free Workplace Act of 1988.

Rule 46 Management Rights

A. The City shall retain, whether exercised or not, solely and exclusively, all express and inherent rights and authority pursuant to law with respect to determining the level of, and the manner in which, the City's activities are conducted, managed and administered.

B. The City has the exclusive right and authority to schedule work and/or overtime work as required in the manner most advantageous to the City.

C. Every incidental duty connected with operations enumerated in job descriptions is not always specifically described; nevertheless, it is intended that the employee shall perform all such duties.

D. The Appointing Authority reserves the right to discipline or discharge employees subject to the procedures set forth in these Rules.

E. The City shall determine assignments and establish methods and processes by which assignments are performed.

F. The City shall have the exclusive right to transfer employees within departments and to positions outside a department in a manner most advantageous to the City.

G. The City shall have the authority, without prior meeting and conferring, to contract for matters relating to municipal operations, including contracting out bargaining unit work. The right of contracting or subcontracting is vested exclusively in the City.

H. The City has the right, without prior meeting and conferring, to effect reorganizations and reallocation of work in the City.

I. The inherent and express rights of the City, including those herein specifically referred to which are not expressly modified or restricted by a specific provision hereof, are not in any way, directly or indirectly, subject to meeting and conferring or the grievance procedure herein.

SECTION 7: ATTACHMENTS

ATTACHMENT “A”**RECEIPT ACKNOWLEDGEMENT**

I confirm that I have received a copy of the City’s Personnel Rules and Procedures and understand that it sets forth the terms and conditions of my employment as well as the rights, duties, responsibilities and obligations of employment with the City of Calimesa. I understand and agree that it is my responsibility to read and familiarize myself with the provisions of the handbook.

Employee’s Signature: _____

Date: _____

ATTACHMENT “B”

VERIFICATION

TO: Human Resources Director

I authorize the City of Calimesa to verify any information submitted on an application form for credit, security, and employment references. I release the City of Calimesa, and authorized employees thereof, from any liability for providing such information.

Name: _____

Title: _____

Date: _____

ATTACHMENT “C”

POLICY AND PROCEDURES

REGARDING PRIVACY OF HEALTH INFORMATION UNDER HIPAA

1. Purpose for Policy

The City of Calimesa (“City”) is committed to protecting the confidentiality of protected health information of individuals in a manner consistent with the Federal Health Insurance Portability and Accountability Act (HIPAA).

2. Overview

This policy concerns protected health information (“PHI”), as defined under HIPAA. A covered entity may not use or disclose PHI except as permitted or required by the standards under HIPAA. Under HIPAA, there are three types of covered entities: (1) health plans that provide or pay the cost of medical care, (2) certain health care providers and (3) health care clearinghouses. While the City, as an employer, is not a covered entity, it maintains several health plans that are covered entities under HIPAA. As a result, the City has compliance obligations on behalf of those plans.

The compliance obligations for fully insured plans are limited where the City receives only enrollment and disenrollment information and does not receive PHI. For these plans, the City may not retaliate against a person for exercising rights under HIPAA or require a waiver of rights that is inconsistent with HIPAA standards. It is the policy of the City to comply with these requirements.

The obligations are more extensive for self-insured plans and for those plans that share PHI with the City. For these plans, the City must provide a notice of privacy practices, appoint a privacy officer, implement written policies and procedures and comply with other requirements.

These policies and procedures have been developed and are implemented in compliance with the HIPAA privacy standards. They apply to the plan or plans maintained by the City. Any questions regarding their coverage, intent or interpretation will be made with reference to the HIPAA privacy requirements.

PHI, as defined by Federal law, means any individually identifiable health information, whether it is in electronic, paper or oral form, that is created or received by or on behalf of a covered entity. PHI is not confined to written materials, facsimiles, or hard copy, but also includes information derived from any source, including, but not limited to: e-mail, computer data, data stored on electronic media, disks, or personal verbal communications or recordings, and visual observation. PHI can include, but is not limited to: Social Security number, name, address, birth date, age, telephone number, subscriber number,

policy number, e-mail address, fax number, and medical records, when provided to or held by a HIPAA covered entity.

3. Privacy Officer and Other Contacts

The City's Human Resources Director is designated as the Chief Privacy Officer (Privacy Officer). The Privacy Officer, also known as the Privacy Official, is responsible for developing and implementing the privacy policies and procedures of a covered entity.

In addition to the Privacy Officer, the Benefits Administrator is designated as a contact person for receiving complaints regarding compliance with the City's policies and procedures or with the privacy requirements under HIPAA and may serve as a Privacy Officer when necessary or required by assignment or the absence of the Chief Privacy Officer. The Privacy Officer and Benefits Administrator are also designated as the contacts to provide further information related to the City's notice of privacy practices.

The Privacy Officer and Benefits Coordinator may be contacted as follows:

City of Calimesa
Attn: Human Resources Director
Human Resources Office
908 Park Avenue
Calimesa, California 92320
Voice: (909) 795-2287
Facsimile: (909) 795-5204

4. Procedures

Following are the basic procedures of compliance with this policy.

A. Use and Disclosure of Information

- (1) PHI may be used or disclosed only as permitted or required under the privacy standards of HIPAA or as authorized in writing by the individual who is the subject of the information.
- (2) Permitted uses and disclosures include those:
 - (a) Where the PHI is used by or disclosed to the subject of the information;
 - (b) For the covered entity's treatment, payment or health care operations, known as TPO;
 - (c) That are incidental to an otherwise permitted use or disclosure and where reasonable safeguards are in place; and
 - (d) Otherwise permitted under HIPAA, such as the public interest and benefit activities listed in the applicable regulation.

- (3) Required disclosures include disclosures:
 - (a) To an individual requesting access to or an accounting of disclosures of his/her own PHI; and
 - (b) To the U.S. Department of Health and Human Services (HHS) when it is conducting a compliance review.
- (4) Authorized uses and disclosures are those made pursuant to an individual's written authorization given in compliance with HIPAA requirements for authorizations.
- (5) Consistent with the requirements of HIPAA and these policies and procedures, the appointed Privacy Officer may disclose PHI only to those who have a legitimate need to know or who have prior written authorization. PHI about an employee may only be shared for purposes of claims payment or health care issues. Except as authorized, PHI may not be used for employment related purposes.
- (6) Casual reading of PHI is not permitted, whether or not the individual is designated for access to PHI for permissible purposes.

B. Minimum Necessary Policy

- (1) When using or disclosing PHI or when requesting PHI from another covered entity, reasonable efforts will be made to limit PHI to the minimum necessary to accomplish the intended purpose of the use, disclosure or request.
- (2) Under HIPAA, the minimum necessary requirement does not apply to:
 - (a) Disclosure to or request by a health care provider for treatment;
 - (b) Disclosure to an individual who is the subject of the information, or the individual's personal representative; and
 - (c) Use or disclosure made pursuant to authorization;
 - (d) Disclosure to HHS for complaint investigation, compliance review or enforcement;
 - (e) Use or disclosure that is required by law; and
 - (f) Use or disclosure required for HIPAA's other rules.
- (3) At the time these policies and procedures are implemented, there are no routine or recurring uses or disclosures for which appropriate minimum necessary protocols can be implemented.

- (4) Non-routine requests for use or disclosure that are subject to the minimum necessary requirement are reviewed on a case-by-case basis, initially by the Privacy Officer.
- (5) The City relies on representations that the PHI requested is the minimum necessary if the request is for a permitted disclosure and is from a public official, a HIPAA covered entity (a health care provider, a health plan or a health care clearinghouse) or a professional providing services to a covered plan who is a business associate and where it is represented that the PHI requested is the minimum necessary.

C. Security of PHI (Data Safeguards)

- (1) It is the responsibility of the Privacy Officer to protect and safeguard PHI in compliance with these policies and procedures and HIPAA requirements.
- (2) Employees with access to PHI are responsible for protecting the PHI from casual or unauthorized access or disclosure.
 - (a) PHI is not to be left in plain view on a desk or other area when unattended.
 - (b) PHI is not to be visible on a computer screen when the computer is unattended.
 - (c) When PHI is not in active use, it is to be maintained in a secure location that will protect its privacy.
 - (d) PHI may not be left in or on fax machines, printers, or copiers.
 - (e) Employees must exercise caution and discretion when leaving voicemail messages containing PHI.
 - (f) Employees must exercise caution and discretion when e-mailing or delivering PHI internally.
- (3) PHI must never be the subject of casual conversation either inside or outside of the workplace. PHI must not be discussed in lobbies, stairwells, elevators, restrooms, hallways, or any other public area where unauthorized visitors or employees may easily overhear conversation.
- (4) PHI in physical form will be stored in secured locations, such as offices or file drawers that are locked when not attended. In order to maintain confidentiality, any item containing PHI as it relates to an employee's specific job functions and responsibilities must be kept in a locked, secure area designated by the Privacy Officer.

- (5) PHI in electronic form will be secured with appropriate data or computer safeguards. All PHI stored on computer systems will be protected with access controls and passwords. Access and passwords will not be shared with unauthorized persons.

D. Violations/Sanctions/Mitigation

- (1) Any person who believes a breach of confidentiality has occurred regarding PHI is encouraged to notify the Privacy Officer. Employees are required to report any violation of these policies and procedures or the HIPAA privacy standards they observe or learn of to the Privacy Officer so that appropriate action can be taken.
 - (a) The Privacy Officer will be responsible for ensuring timely investigation of all reports of non-compliance with or violation of these policies and procedures and the HIPAA privacy standards.
 - (b) Appropriate corrective action, including mitigation, disciplinary sanctions and systemic changes will be implemented where non-compliance or a violation is found. Additional measures may be implemented to prevent or reduce the potential for future compliance problems.
- (2) Employees found to be in violation of this policy will be subject to disciplinary action, consistent with the City's existing rules, procedures and any applicable memorandum of understanding. Individuals or entities violating HIPAA's privacy standards may be subject to civil or criminal under state or federal law and regulations that protect PHI.
- (3) Harmful effects of an improper use or disclosure of PHI will be mitigated, to the extent practical, where known to the City or a covered entity.

E. Procedures for an Accounting, Inspection or Copying

- (1) Requests for an accounting of disclosures of an individual's PHI by a covered entity or its business associates may be made to the Privacy Officer, as provided in the applicable Notice of Privacy Practices.
- (2) Requests to inspect or copy medical records or PHI may be made to the Privacy Officer.
- (3) The Privacy Officer will provide for an accounting, inspection and copying in compliance with the applicable Notice of Privacy Practices and the requirements of the HIPAA privacy standards.

F. Procedures for Amending and Correcting Records

- (1) Requests to amend or correct a medical record or PHI may be made to the Privacy Officer.
- (2) The Privacy Officer will review and respond to the request and, where applicable, take appropriate action in response to the request, in compliance with the applicable Notice of Privacy Practices and the requirements of the HIPAA privacy standards.

G. Procedures for Requesting Restrictions

- (1) Requests that a covered entity restrict the use or disclosure of PHI, as provided under the HIPAA privacy standards and outlined in the Notice of Privacy Practices, may be made to the Privacy Official.
- (2) Requests that a covered entity communicate with an individual through alternate methods or at alternate locations may be made to the Privacy Official in the manner outlined in the Notice of Privacy Practices.
- (3) The Privacy Officer will review and respond to such requests and, where applicable, take appropriate action in response to the request and the determination made, in compliance with the applicable Notice of Privacy Practices and the requirements of the HIPAA privacy standards.

H. Procedures for Documentation and Record Keeping

- (1) Documentation required under the HIPAA privacy standards will be kept for six (6) years from the later of the date created or last in effect.
- (2) Examples of documents subject to the retention requirements include:
 - (a) Privacy policies and procedures;
 - (b) Notice of Privacy Practices;
 - (c) Plan documents;
 - (d) Signed authorizations;
 - (e) Complaints and their outcome;
 - (f) Documents regarding the exercise of individual rights under these policies and procedures or under the HIPAA privacy standards;
 - (g) Records of PHI disclosures for non-TPO purposes;

- (h) Records of sanction imposed or mitigation undertaken in compliance with these policies and procedures or the HIPAA privacy standards; and
- (i) Business associate contracts.

I. Training

- (1) Training on these policies and procedures and the HIPAA privacy requirements will be provided to employees as necessary for those individuals to carry out their functions.
- (2) Training will include, at a minimum, the Human Resources staff and those with access to PHI.
- (3) Training will be documented.

J. Complaint Process

- (1) The City, on its own behalf and on behalf of the covered health plans, is committed to complying with the HIPAA privacy standards, these policies and procedures and with other applicable state and federal privacy laws. The City and covered health plans are also committed to addressing violations that may occur.
- (2) Individuals who believe that their privacy rights have been violated may make a complaint to the Privacy Officer or to the Benefits Administrator. If an individual believes that making a complaint to the Privacy Officer or Benefits Administrator will be ineffective or inappropriate, the complaint may be made to the Director of Human Resources or to the City Manager.
- (3) Except as otherwise determined by the Director of Human Resources or the City Manager, the Privacy Officer will be responsible for ensuring timely investigation of and determination regarding all complaints. The party presenting the complaint will be advised when the investigation is complete and, where applicable, of the determination made.
- (4) A log of reported violations will be maintained, including the nature of any investigation, the results and any mitigation measures taken.
- (5) Individuals also have the right to report violations to the Secretary of the U.S. Department of Health and Human Services.
- (6) An effort will be made to maintain the confidentiality of any individual who reports possible violations, consistent with conducting a thorough, fair investigation and in compliance with applicable due process or other legal requirements.

K. Prohibition of Retaliation

- (1) Neither the City nor any covered health plan will retaliate against a person for
 - (a) Reporting what the individual believes in good faith to be a possible violation of federal or state privacy law;
 - (b) Exercising rights under these policies and procedures or as provided under the HIPAA privacy standards;
 - (c) Assisting in investigations by HHS or another appropriate entity or for opposing an act or practice that the person believes in good faith is a violation of the HIPAA privacy standards.
- (2) Persons who believe they are the subject of prohibited retaliation are encouraged to report the situation to the Privacy Official.

Any questions regarding this policy should be directed to the Privacy Officer or to the Benefits Administrator.

ATTACHMENT C-1**AUTHORIZATION FOR USE OR DISCLOSURE OF
HEALTH INFORMATION**

Completion of this document authorizes the disclosure and/or use of health information about you. Failure to provide *all* information requested may invalidate this Authorization.

Use and Disclosure of Health Information

I, _____ hereby authorize _____
(Name)

to release the health information described below to: _____.
(Persons/Organizations authorized to *receive* the information)

☐ All health information pertaining to my medical history, mental or physical condition and treatment received

OR

☐ Only the following records or types of health information (including any dates):

Purpose

Purpose of requested use or disclosure: ☐ patient request; **OR** ☐ other:

Expiration

This Authorization expires [insert date]: _____

My Rights

I may refuse to sign this Authorization. Except as otherwise permitted by law, my refusal will not affect my ability to obtain treatment or payment or eligibility for benefits.

I may inspect or obtain a copy of the health information that I am being asked to allow the use or disclosure of.

I may revoke this Authorization at any time, but I must do so in writing and submit it to the following address:

My revocation will take effect upon receipt, except to the extent that others have acted in reliance upon this Authorization.

I have a right to receive a copy of this Authorization.

Information disclosed pursuant to this Authorization could be re-disclosed by the recipient. Such re-disclosure is in some cases not protected by California law and may no longer be protected by federal confidentiality law (HIPAA).

If this box ☐ is checked, the Requestor will receive compensation for the use or disclosure of my information.

Signature

Date: _____ Time: _____ a.m./p.m.

Signature: _____
(patient/representative/spouse/financially responsible party)

If signed by someone other than the patient, state your legal relationship to the patient:

Witness: _____

ATTACHMENT “D”

POLICY FOR CONDUCTING CRIMINAL BACKGROUND CHECKS AND SECURING RECEIVED CRIMINAL HISTORY INFORMATION

I. Policy Statement

- A. To ensure that the interests of the City of Calimesa (“City”), its employees and members of the public are protected and to help minimize potential liability, the City may obtain State summary criminal background information on prospective and existing employees, volunteers, independent contractors, and permittees from the California Department of Justice.
- B. The City may request information about criminal history of prospective and existing employees, volunteers, independent contractors, and permittees. Under Labor Code section 432.7, the City may not seek the following information: an arrest or detention that did not result in conviction; marijuana convictions more than two years old; and referral to and participation in any pretrial or post-trial diversion program.
- C. The City wishes to comply with Public Resources Code Section 5164, which provides that the City should take reasonable steps to determine if a prospective or existing employee or volunteer in specified park and recreation facilities has been convicted of certain offenses in accordance with Penal Code Section 11105.3.
- D. Any person who has been convicted of a felony or misdemeanor may not be eligible for employment or eligible to perform volunteer, independent contractor, or permittee services. Unless required by law, the City will not deny employment to any applicant or deem an employee not eligible for employment solely because he or she has been convicted of a crime. In determining eligibility for employment, the City shall consider the nature, date and circumstances of the offense, evidence of rehabilitation as well as whether the offense is relevant to the duties of the position.
- E. The City has established procedures governing the use and confidentiality of any resulting criminal history information obtained.
- F. For purposes of this policy, the term “employee” includes any employee of the City, including without limitation, any prospective and existing full-time employee, part-time employee, seasonal employee, temporary employee, hourly employee, and contract employee of the City, except as expressly excluded in this policy. The term “employee” shall also not include any elected official, member of any appointed board, commission or committee, independent contractor, permittee, and/or volunteer.

II. Authority

California Penal Code Section 11105 allows cities to obtain State summary criminal background information from the Department of Justice if the City Council has given the City Manager or his/her designee authority to obtain such records. The City Manager and the Human Resources Director have been granted such authority pursuant to Resolution No. 2006-47 of the City Council. For purposes of Resolution No. 2006-47 and this policy, the term “City Manager” also includes any person designated in writing by the City Manager to perform the duties specified herein.

California Penal Code Section 11105.2 further authorizes cities to obtain State subsequent arrest information with respect to existing employees and applicants for employment or volunteer positions.

California Public Resources Code Section 5164 prohibits cities from hiring any person, or engaging any person to serve as a volunteer, in any position in any city-operated park, playground, recreational center, or beach used for recreational purposes, if such person has been convicted of specified offenses, and would have supervisory or disciplinary authority over minors.

California Education Code Section 10911.5 requires that cities obtain fingerprints of any person, in any public recreation program, who will have direct contact with minors.

California Penal Code Section 11105.3 provides that human resources agencies or employers may request from the Department of Justice records of all convictions and any arrests pending final adjudication involving offenses specified in Welfare and Institutions Code Section 15660, for any person who applies for a license, employment or volunteer position in which he/she would have supervisory or disciplinary power over or direct contact with a minor or any person under his/her care. Penal Code Section 11105.3 further requires that if a human resource agency or employer hires any prospective employee or volunteer who has been convicted of specified offenses, where such employee or volunteer would have supervisory or disciplinary authority over any minor or any person under his/her care, the agency or employer must notify the parents or guardians of such minors prior to commencement of performance by the employee or volunteer of his/her duties.

III. Applicability

- A. Applicants for Employment, Volunteer Positions, Independent Contractor Positions and Permittees. After the conditional offer is made to an applicant, the City shall obtain criminal background information on all applicants for employment, volunteer positions, and independent contractor positions (including, but not limited to, independent recreation instructors). The City shall also obtain criminal background information on any applicant for a permit to provide courses or instruction at any City facility, where such applicant would have supervisory or

disciplinary power over or direct contact with minors or persons under his/her care.

For positions that the City is not required by law to conduct a criminal background information check, the City Manager shall make a preliminary decision on whether an applicant is disqualified from employment or providing volunteer or independent contractor services or providing courses or instruction in any City facility. The City Manager's preliminary decision shall be based upon his/her determination that such conviction is relevant to position, services, or courses for which such person has applied. In making his/her determination, the City Manager shall consider all facts and circumstances, including but expressly not limited to, the length in time since each conviction, the number of convictions, the seriousness of each offense for which the applicant was convicted, the applicant's work record and volunteer service with prior employers and/or third parties, and potential effect of the conviction upon the prospective position of employment, volunteer position, independent contractor position, or other services, as well as fellow employees, volunteers and the public. If the preliminary decision is that the applicant is disqualified, the City Manager shall: provide the written notice of the disqualifying conviction or convictions that are the basis for the preliminary decision to rescind the offer; include a copy of the conviction history report, if any; provide an explanation that the applicant has the right to respond to the notice within at least five (5) business days, and that the response may include submission of evidence challenging the accuracy of the conviction record, or evidence of rehabilitation or mitigating circumstances or both. If the applicant timely notifies the City Manager in writing that he or she is disputing the conviction history and is taking steps to obtain evidence to support this, the City shall provide five (5) additional business days to respond to the notice. The City Manager shall consider any additional evidence or documents the applicant provides in response to the notice before making a final decision. If the City Manager decides to deny an applicant based on the conviction history, the City Manager shall notify the applicant of this in writing and include notification of any existing procedure the employer has to challenge the decision, as well as notification of the applicant's right to file a complaint with the Department of Fair Employment and Housing.

In the case of any employee, volunteer, or independent contractor position appointed directly by the City Council, or for which City Council approval is required (including, but expressly not limited to, the City Manager, City Attorney, City Clerk, the determination under this Section shall be made by the City Council.

- B. Existing Employees, Volunteers, Independent Contractors, and Permittees. The City may also obtain criminal background information on all current employees irrespective of their position, including but not limited to, current employees who work with or have supervisory or disciplinary authority over any minor and/or any person under his/her care, and/or whose positions involve the use of public funds and/or public records. The City shall also obtain criminal background

information on all current volunteers, independent contractors, and permittees who work with, have direct contact with, or who have supervisory or disciplinary authority over, any minor and/or any person under his/her care, and/or whose positions involve the use of public funds and/or public records. Those positions involving supervisory or disciplinary authority over minors and/or any person under his/her care are set forth in Attachment D-1 (as well as any additional, new or modified positions that may be created or added to Attachment D-1 after the effective date of this policy). Those positions involving the use of public funds and/or public records are set forth in Attachment D-2 (as well as any additional, new or modified positions that may be created or added to Attachment D-2 after the effective date of this policy). Any applicant for a transfer or promotion into any of the positions listed on Attachments D-1 or D-2 (or as such Attachments may be subsequently modified), shall also be subject to these requirements.

In the event that an existing employee has a right to appeal any disciplinary action (up to and including termination) under the City's Personnel Rules and Regulations and/or any applicable City ordinance, rule or regulation, any such disciplinary appeal procedures shall be conducted in accordance with the Personnel Rules and Regulations and/or other personnel policies applicable to the employee's classification or position. Provided that, if the event that by Federal or State statute an employee or volunteer is barred from serving in a position due to a conviction of any specified offense or crime, no appeal may supersede any such statutory mandate. In the event that an existing employee is an at-will employee of the City, he/she shall have no right of appeal.

- C. As used in this policy, the term "conviction" shall include a plea, verdict or finding of guilt, regardless of whether sentence is imposed by the court, or a plea of *nolo contendere*. The term "conviction" shall not include any of the following:
1. Any conviction for which the record has been judicially ordered sealed, expunged, or statutorily eradicated, including but expressly not limited to, pursuant to Penal Code Sections 1203.4, 1203.4a, and/or 1203.45.
 2. Any misdemeanor conviction for which probation has been successfully completed or otherwise discharged; and the case has been judicially dismissed pursuant to Penal Code Section 1203.4, except as otherwise specifically provided by said Penal Code Section 1203.4.
 3. Any arrest for which a pretrial diversion program has been successfully completed pursuant to Penal Code Sections 1000.5 and 1001.5.
 4. Any conviction for any offense specified in Labor Code Section 432.8 (including but expressly not limited to, Health and Safety Code Section 1135(b) or (c), and Health and Safety Code Section 11360(c), 11364, 11365, or 11550, two (2) years from the date of the conviction).

- D. As used in this policy, the phrase “arrest pending final adjudication” shall mean any arrest for which the applicant, employee, volunteer, or independent contractor is currently out on bail or on his/her own recognizance pending trial.
- E. No Change to At-Will Status. This policy does not modify the status of any employee or other person holding his/her position as an at-will employee or serving at the pleasure of the Appointing Authority, including but expressly not limited to, any probationary employee, as set forth in the City of Calimesa Municipal Code and City of Calimesa Personnel Rules and Regulations; and this policy does not create in any such at-will employee, or any other person holding his/her position at the will of the Appointing Authority, any property right to his/her position. This policy does not create any employment relationship, nor any contract of employment, between the City and any independent contractor, or between the City and any permittee.
- F. Applicants for Permits and Permittees. To the extent not otherwise addressed by Sections A. and B. of this policy, the City shall obtain criminal background information in accordance with the procedures and terms of this policy, on applicants for permits to teach courses or instruction on or at any City facility, where such permittee will have supervisory or disciplinary authority over or direct contact with minors. Such permits include, but are expressly not limited to, permits to teach privatized recreation classes.

IV. Assignment Responsibility

It is the responsibility of the employee, applicant, volunteer, independent contractor, or permittee to report any conviction to the City.

- A. The information shall be included on all employment applications, volunteer applications, applications or requests for proposals or qualifications by independent contractors, and all permit applications to teach courses or instructions in any City facility.
- B. For current employees who wish to transfer or promote to another position, or for any volunteer who wishes to serve in another volunteer capacity, the information shall be included on any application or request for transfer or promotion.
- C. If any convictions occur while the employee or volunteer is working for the City, the employee or volunteer shall report that conviction to his/her supervisor who shall forward the information to the Department Head and City Manager. Alternatively, the City Manager may be informed directly. Independent contractors and permittees shall report any such conviction or arrest to the City Manager. If an independent contractor reports to the City Council, the independent contractor may report such information to the City Manager and/or to the City Council.

- D. All information obtained by any City employee or official about a conviction of such employee and official shall be maintained in accordance with the requirements of this policy and the law.
- E. Notwithstanding the foregoing, and in accordance with California Labor Code Section 432.7 and 432.8, no person shall be required to disclose any conviction for any violation of any of the following provisions, where such conviction occurred more than two (2) years prior to date of application: Health and Safety Code Sections 11357(b) or (c), or a statutory predecessor thereof; Health and Safety Code Section 11360(c), Health and Safety Code Sections 11364, 11365 or 11550, as they related to marijuana prior to January 1, 1976, or a statutory predecessor thereof.

V. Procedures

- A. All existing employees irrespective of their position, all applicants for employment irrespective of the position, and all existing employees who seek a transfer or promotion into any position listed in Attachment D-1 or D-2, shall be subject to a criminal record check as a condition of employment. A criminal records check shall also be a condition of approval of any application to provide volunteer or independent contractor services and/or issuance of a permit where the volunteer, independent contractor and/or permittee would have direct contact with, or supervisory or disciplinary authority over any minor or person under his/her care, or who works with public funds or public records, as set forth in Attachments D-1 or D-2.
 - 1. The City shall submit a completed Applicant Fingerprint Card to the Department of Justice accompanied by any other forms or information required by the Department of Justice in order to obtain the criminal background information.
 - 2. Any information obtained from the Department of Justice shall be used to determine whether the applicant shall be offered a position with the City as an employee, volunteer or independent contractor, or receive a permit; or whether an existing employee may be promoted or transferred or continue to be employed by the City. In the case of existing volunteers, independent contractors and/or permittees, such information shall be used to determine whether the person may continue to perform volunteer or independent contractor services, or otherwise provide services at any City facility.
 - 3. The City may, in its sole discretion, hire a prospective employee contingent upon the results of the criminal background information received subsequent to the initial date of hire, or may authorize a person to commence work as a volunteer, independent contractor, or permittee contingent upon the results of the criminal background information

received after commencement of services, in accordance with this Subsection.

- (a) Except as provided in Subparagraph (c), the City may authorize a person to commence employment pending receipt of criminal history information; and any job offer shall be contingent or conditional upon successful passing of the criminal background investigation. In addition to all other grounds to terminate employees in accordance with this policy or any provision of the City's Personnel Rules and Regulations, any employee hired pending the receipt of criminal background information may be terminated if the employee is found to have falsified or omitted criminal background information on his/her employment application.
 - (b) Except as provided in Subparagraph (c), the City may authorize a person to commence work as a volunteer, independent contractor, and/or permittee, pending receipt of the results of the criminal background investigation; and any such offer or approval to commence work shall be contingent or conditional upon successful passing of the criminal background investigation. In addition to any other grounds to terminate volunteer, independent contractor, and/or permittee services, the falsification of, or concealment or withholding by criminal background information on any application, shall be grounds to terminate the services of the volunteer and/or independent contractor, or revoke his/her permit. Nothing in this policy is intended to modify the status of any volunteer, independent contractor, and/or permittee as serving as at the will of the City; or to create any property right in his/her volunteer services, contract and/or permit.
 - (c) Notwithstanding any other provision of this policy to the contrary, no person shall be permitted to become employed as, transfer or promote into any employment position, or to commencement providing services as a volunteer, independent contractor, or permittee, in any position, course or instruction, where such person may interact with, have direct contact with, or have supervisory or disciplinary authority over, any minor, until his/her criminal history has been obtained from the State in accordance with this policy and a determination has been made by the City Manager that any conviction does not disqualify him/her from any such employment or volunteer or independent contractor position.
- B. The City shall enter into a contract with the Department of Justice so that any subsequent conviction information concerning an employee, volunteer, independent contractor and/or permittee, may be obtained.

1. Except as otherwise provided in Subsection 2., any information received from the Department of Justice about a conviction of any existing employee, volunteer, independent contractor, and/or permittee, shall be reported to the Department Head of the existing employee, volunteer, or to the City Manager.
 2. In the case of independent contractors and permittees, information pertaining to the conviction shall be reported to the City Manager. Information pertaining to a conviction of the City Manager shall be reported to the City Attorney. Information pertaining to a conviction of the City Attorney shall be reported to the City Manager and City Council. In the case of all other independent contractors or employees appointed directly by the City Council, information about a conviction shall be reported to the City Manager and City Attorney.
 3. Upon receipt of information regarding a conviction, the City shall evaluate the effect and potential effect of the employee's, volunteer's, independent contractors, or permittee's record or arrest on their position of employment, fellow employees and the public, and shall take appropriate action to maximize public safety and minimize potential liability while respecting the rights of the employee, volunteer, independent contractor, or permittee, in accordance with this policy.
- D. If it is found that an employee, volunteer, independent contractor and/or permittee has not reported to the City a conviction, the City may take appropriate action as provided under this policy.
- E. In the event that any applicant, employee, volunteer, independent contractor, and/or permittee refuses to be fingerprinted in accordance with the requirements of this policy and the law, the City may take any of the following actions: discipline any employee, up to and including termination; modify or remove duties of any volunteer or independent contractor or terminate such volunteer's or independent contractor's services or deny or revoke any permit for any permittee.

VI. Confidentiality

State summary criminal history information is confidential and shall not be disclosed, except to the City Manager, Director of Human Resources, City Attorney, and those other individuals designated by the City Manager. The City Council shall have right of access to State summary criminal history information with respect to those persons over whom the City Council has direct appointment authority, to the extent necessary to make such employment and appointment decisions. Persons with access to such information shall sign a form acknowledging (1) that the information is confidential and (2) that civil and criminal penalties, as well as dismissal from employment, may result if the confidential information is misused. (See Attachment D-6.)

- A. Pursuant to California Penal Code Section 11077, the Attorney General is responsible for the security of Criminal Offender Record Information (“CORI”) and has the authority to establish regulations to assure the security of CORI from unauthorized disclosures. The following are requirements as prescribed by the State of California, Department of Justice, Bureau of Criminal Identification and Information, Field Operations and Record Security for any agency that maintains or receives criminal history information.
1. Record Security. Any inquiries regarding the release, security or privacy of CORI are to be resolved by the City Manager.
 2. Records Storage. CORI shall be under lock and key and accessible only to the City Manager, who shall be committed to protect CORI from unauthorized access, use or disclosure.
 3. Record Dissemination. CORI shall be used only for the purpose for which the City Manager requested it.
 4. Record Destruction. Upon determination of employment, CORI and copies of the same shall be destroyed to the extent that the identity of the person can no longer be reasonably ascertained.
 5. Record Reproduction. CORI may not be reproduced for dissemination.
 6. Training. The City Manager and employees with access to CORI are required:
 - (a) To read and abide by this policy;
 - (b) To be fingerprinted and have a clearance check completed; and
 - (c) To have on file a signed copy of the Employee Statement Form for the Use of Criminal Record Information which acknowledges an understanding of laws prohibiting misuse of CORI.
 7. Penalties. Misuse of CORI is a criminal offense. Violation of this policy regarding CORI may result in suspension, dismissal, and/or criminal or civil prosecution. All penalties are cumulative and non-exclusive.
- B. The City shall comply with any other requirements of the Attorney General and/or State of California, Department of Justice with regard to maintenance and confidentiality of CORI as such may be adopted or amended from time to time.

VII. Monitoring of this Program

The City Manager will monitor compliance with this policy. All Department Heads shall assist the City Manager as needed.

ATTACHMENT D-1

**CITY OF CALIMESA LIST OF POSITIONS INVOLVING SUPERVISORY OR
DISCIPLINARY CONTROL OVER OR DIRECT CONTACT WITH MINORS**

[INSERT SPECIFIC EMPLOYEE, VOLUNTEER, AND INDEPENDENT CONTRACTOR
POSITIONS AS APPROPRIATE]

This list shall be deemed to include such other positions that are added, modified, or re-titled after adoption of this policy, and that are substantially similar to the positions listed above. The City may amend this list from time to time.

ATTACHMENT D-2

**CITY OF CALIMESA LIST OF POSITIONS INVOLVING USE OF
PUBLIC FUNDS AND/OR RECORDS**

[INSERT SPECIFIC EMPLOYEE, VOLUNTEER, AND INDEPENDENT CONTRACTOR
POSITIONS AS APPROPRIATE]

This list shall be deemed to include such other positions that are added, modified, or re-titled after adoption of this policy, and that are substantially similar to the positions listed above. The City may amend this list from time to time.

ATTACHMENT D-3**CITY OF CALIMESA ACKNOWLEDGMENT FORM FOR JOB APPLICANTS AND
EMPLOYEES REGARDING CRIMINAL BACKGROUND INVESTIGATIONS**

Check all appropriate box(es):

- ☐ I am an applicant for employment with the City of Calimesa as a(n)
_____.
- ☐ I am currently employed by the City of Calimesa, and I am applying for the position of
_____ with the City of Calimesa.

I have read and understood the City of Calimesa Policy For Criminal Background Checks and Securing Received Criminal History Information (the "Policy"). I understand that the several state laws prohibit the City from hiring as an employee, or approving any job transfer for, any person convicted of certain offenses into or for any position which involves supervisory or disciplinary authority over or direct contact with minors. These laws are referenced in Section II of the Policy.

Signature

Print Name

Date

ATTACHMENT D-4**CITY OF CALIMESA ACKNOWLEDGMENT FORM FOR VOLUNTEERS
REGARDING CRIMINAL BACKGROUND INVESTIGATIONS**

Check all appropriate box(es):

- ☐ I am an applicant to be a volunteer with the City of Calimesa as a(n) _____.
- ☐ I am a volunteer with the City of Calimesa as a(n) _____.

I have read and understand the City of Calimesa Policy For Criminal Background Checks and Securing Received Criminal History Information (the "Policy"). I understand that several state laws prohibit the City from permitting any person to act as a volunteer if such person has been convicted of certain offenses, in any position which involves supervisory or disciplinary authority over or direct contact with minors. These laws are referenced in Section II of the Policy.

I further understand that as a volunteer, I hold my position at the will of the City, and that I do not have any property right to perform any continued volunteer services with the City.

Signature

Print Name

Date

ATTACHMENT D-5**CITY OF CALIMESA ACKNOWLEDGMENT FORM FOR
INDEPENDENT CONTRACTORS AND PERMITEES REGARDING
CRIMINAL BACKGROUND INVESTIGATIONS**

Check all appropriate box(es):

- ☐ I have submitted a proposal to the City of Calimesa to provide services as a(n) _____.
- ☐ I have submitted an application to the City of Calimesa for a permit to _____ at the _____.

I have read and understand the City of Calimesa Policy for Criminal Background Checks and Securing Received Criminal History Information (the "Policy"). I understand that the several state laws prohibit the City from retaining or appointing, as an independent contractor, or issuing a permit to, any person convicted of certain offenses into any position which involves supervisory or disciplinary authority over or direct contact with minors. These laws are referenced in Section II of the Policy.

I acknowledge that the terms of such Policy are incorporated by reference into any independent contractor contract and/or permit issued to me. I further acknowledge that nothing herein establishes any employment relationship between me and the City.

Signature

Print Name

Date

ATTACHMENT D-6**CITY OF CALIMESA EMPLOYEE ACKNOWLEDGMENT REGARDING
THE USE AND CONFIDENTIALITY OF CRIMINAL JUSTICE INFORMATION****NOTICE**

As an employee or official of the City of Calimesa, it may be necessary for you to have access to confidential criminal record information in making employment decisions. Access to such criminal record information is controlled by statute, and is also subject to the “City of Calimesa Policy For Conducting Criminal Background Checks and Securing Received Criminal History Information.” Misuse of such information may adversely affect the civil rights of existing and prospective employees, volunteers, independent contractors, and permittees, and violates the law. California Penal Code Section 502 prescribes the penalties relating to computer crimes. Penal Code Sections 11105 and 13300 identify who is permitted access to criminal history information and under what circumstances information may be released. Penal Code Sections 11140 through 11144 and 13301 through 13305 prescribe penalties for misuse of criminal history information. Government Code Section 6200 prescribes the felony penalties for misuse of public records and California Law Enforcement Telecommunications Systems (CLETS) information. Labor Code Section 432.7 prescribes penalties for misuse of certain criminal record information in employment decisions.

Penal Code Sections 11142 and 13303 State:

“Any person authorized by law to receive a record or information obtained from a record who knowingly furnishes the record or information to a person not authorized by law to receive the record or information is guilty of a misdemeanor.”

Any employee who is responsible for such misuse of criminal record information may be subject to discipline up to and including immediate termination. Violations of this law may also result in criminal and/or civil action.

If you have any questions regarding your access to and use of confidential criminal record information, immediately address your questions with the City Manager.

ACKNOWLEDGMENT

I HAVE READ AND UNDERSTAND THE ABOVE NOTICE AND THE “CITY OF CALIMESA POLICY FOR CONDUCTING CRIMINAL BACKGROUND CHECKS AND SECURING RECEIVED CRIMINAL HISTORY INFORMATION.” I AM AWARE OF THE STATUTES AND POLICIES PERTAINING TO THE MISUSE OF CRIMINAL RECORD INFORMATION AND I SHALL ABIDE BY THOSE STATUTES AND POLICIES.

Signature

Print Name of Employee/Official

Date

ATTACHMENT D-8

CITY OF CALIMESA EMPLOYMENT AND/OR VOLUNTEER APPLICATION: SUPPLEMENTAL QUESTIONNAIRE: CRIMINAL HISTORY

California Public Resources Code (“PRC”) Section 5164 prohibits the City of Calimesa from hiring a person for employment or engaging a volunteer to perform services at any park, playground or recreational center used for recreational purposes in a position having supervisory or disciplinary authority over any minor, if the person has been convicted of certain crimes under the California Penal Code. PRC Section 5164 requires that each prospective employee or volunteer complete an application that asks if the person has been convicted of any of the specified offenses. In addition, the code section provides for a criminal background check, which requires fingerprinting. A copy of PRC Section 5164 is attached.

Since you are a candidate for employment or volunteer service covered by PRC Section 5164, please answer the following supplemental questions. The completed form must be completed in full and attached to your employment application. ***Applications that do not have the completed form attached will not be considered for employment or volunteer service.*** The City of Calimesa reserves the right to obtain additional information regarding any criminal convictions disclosed below.

CRIMINAL OFFENSE	YES	NO	DATE OF CONVICTION	IDENTIFY STATE OF CONVICTION (FOR STATE OR FEDERAL CONVICTIONS)	LIST IF CONVICTION WAS A MISDEMEANOR OR FELONY
1. Have you ever been convicted of assault with intent to commit mayhem, rape, sodomy, or oral copulation?					
2. Have you ever been convicted of attempted assault with intent to commit mayhem, rape, sodomy or oral copulation?					
3. Have you ever been convicted of acting in concert with another person with the use of force or violence, or aiding or abetting, rape, rape of a spouse, or any act constituting penetration by foreign or unknown objects?					

CRIMINAL OFFENSE	YES	NO	DATE OF CONVICTION	IDENTIFY STATE OF CONVICTION (FOR STATE OR FEDERAL CONVICTIONS)	LIST IF CONVICTION WAS A MISDEMEANOR OR FELONY
4. Have you ever been convicted of attempted aiding or abetting of rape, rape of a spouse, or any act constituting penetration by foreign or unknown objects?					
5. Have you ever been convicted of lewd or lascivious acts involving children under the age of 14?					
6. Have you ever been convicted of unlawful sexual intercourse with a person under age 18?					
7. Have you ever been convicted of spousal rape?					
8. Have you ever been convicted of willful harm or injury to a child, including but not limited to, endangering a child or causing or permitting a child to suffer physical pain, mental suffering or injury?					
9. Have you ever been convicted of corporal punishment or injury of a child?					
10. Have you ever been convicted of willful infliction of corporal injury to a spouse, former spouse, cohabitant, or mother or father of your child?					
11. Have you ever been convicted of any sexual crime or offense?					
12. Have you ever been convicted of any of kidnapping or attempted kidnapping?					
12.1 If yes, were you convicted of kidnapping or attempted kidnapping with the intent to commit rape, sodomy, lewd or lascivious acts, oral copulation, or forcible acts of sexual penetration?					

CRIMINAL OFFENSE	YES	NO	DATE OF CONVICTION	IDENTIFY STATE OF CONVICTION (FOR STATE OR FEDERAL CONVICTIONS)	LIST IF CONVICTION WAS A MISDEMEANOR OR FELONY
13. Have you ever been convicted of kidnapping for ransom?					
13.1 If yes, were you convicted of kidnapping for ransom or attempted kidnapping for ransom with the intent to commit rape, sodomy, lewd or lascivious acts, oral copulation, or forcible acts of sexual penetration?					
14. Have you ever been convicted of sexual battery?					
15. Have you ever been convicted of aiding, abetting or soliciting the rape, rape of a spouse, or forcible acts of sexual penetration?					
16. Have you ever been convicted of enticement of an unmarried minor female for purposes of prostitution?					
17. Have you ever been convicted of aiding and abetting the enticement of an unmarried minor female for purposes of prostitution?					
17. Have you ever been convicted of inducing sexual intercourse with another when the other's consent is procured by false pretenses with the intent to create fear?					
19. Have you ever been convicted of pimping of a minor?					
20. Have you ever been convicted of pandering of a minor?					
21. Have you ever been convicted of procurement of a child under 16 years of age for lewd and lascivious acts?					
22. Have you ever been convicted of abduction (taking away) of a person under age 18 for purposes of prostitution?					
CRIMINAL OFFENSE	YES	NO	DATE OF	IDENTIFY	LIST IF

			CONVICTION	STATE OF CONVICTION (FOR STATE OR FEDERAL CONVICTIONS)	CONVICTION WAS A MISDEMEANOR OR FELONY
23. Have you ever been convicted of aggravated sexual assault of a child?					
24. Have you ever been convicted of incest?					
25. Have you ever been convicted of sodomy?					
26. Have you ever been convicted of lewd or lascivious acts of the solicitation of lewd or lascivious acts?					
27. Have you ever been convicted of oral copulation?					
28. Have you ever been convicted of continuous sexual abuse of a child?					
29. Have you ever been convicted of forcible acts of sexual penetration or the solicitation of forcible acts of sexual penetration?					
30. Have you ever been convicted of selling, distributing, printing or exhibiting child pornography?					
31. Have you ever been convicted of sexual exploitation of a child?					
32. Have you ever been convicted of employment or use of a minor to perform prohibited acts?					
33. Have you ever been convicted of advertising child pornography?					
34. Have you ever been convicted of possession of child pornography?					
35. Have you ever been convicted of annoying or molesting a child under 18?					

CRIMINAL OFFENSE	YES	NO	DATE OF CONVICTION	IDENTIFY STATE OF CONVICTION (FOR STATE OR FEDERAL CONVICTIONS)	LIST IF CONVICTION WAS A MISDEMEANOR OR FELONY
36. Have you ever been convicted of solicitation of rape by force or violence, sodomy by force or violence, or oral copulation by force or violence?					
37. Have you ever been convicted of indecent exposure?					
38. Have you ever been convicted of procuring, counseling, or assisting any person to commit indecent exposure?					
39. Have you ever been convicted of contributing to the delinquency of a minor?					
40. Have you ever been convicted of sending harmful material to a minor with the intent to seduce said minor?					
41. Have you ever been convicted of armed robbery?					
42. Have you ever been convicted of armed carjacking?					
43. Have you ever been convicted of assault or attempted murder of a public official?					
44. Have you ever been convicted of false imprisonment?					
45. Have you ever been convicted of assault?					
46. Have you ever been convicted of battery?					
47. Have you ever been convicted of murder?					
48. Have you ever been convicted of mayhem?					

CRIMINAL OFFENSE	YES	NO	DATE OF CONVICTION	IDENTIFY STATE OF CONVICTION (FOR STATE OR FEDERAL CONVICTIONS)	LIST IF CONVICTION WAS A MISDEMEANOR OR FELONY
49. Have you ever been convicted of a crime that requires you to register as a sex offender in the State of California?					

In addition to the foregoing, please answer the following question:

50. Are you currently released on bail or on your own recognizance for any crime?
 Yes ____ No ____

If your answer is yes, please describe the crime for which you were charged, the date upon which you were charged, and the jurisdiction in which you were charged:

CERTIFICATION OF APPLICANT

I hereby certify under penalty of perjury that all responses herein are true and correct. I understand and agree that any misstatements or omissions of material fact will be cause for disqualification from the application process or for immediate discharge from employment or volunteer service, regardless of the lapse of time before discovery.

 Employee/Volunteer Applicant Signature

 Date

 Parent or Guardian Signature if Employee/Volunteer
 Applicant is a Minor

 Date

CALIFORNIA PUBLIC RESOURCES CODE ("PRC") SECTION 5164

(a) (1) A county or city or city and county or special district shall not hire a person for employment, or hire a volunteer to perform services, at a county or city or city and county or special district operated park, playground, recreational center, or beach used for recreational purposes, in a position having supervisory or disciplinary authority over any minor, if that person has been convicted of any offense specified in paragraph (2).

(2) (A) Violations or attempted violations of Section 220, 261.5, 262, 273a, 273d, or 273.5 of the Penal Code, or any sex offense listed in Section 290 of the Penal Code, except for the offense specified in subdivision (d) of Section 243.4 of the Penal Code.

(B) Any felony or misdemeanor conviction specified in subparagraph (C) within 10 years of the date of the employer's request.

(C) Any felony conviction that is over 10 years old, if the subject of the request was incarcerated within 10 years of the employer's request, for a violation or attempted violation of any of the offenses specified in Chapter 3 (commencing with Section 207) of Title 8 of Part 1 of the Penal Code, Section 211 or 215 of the Penal Code, wherein it is charged and proved that the defendant personally used a deadly or dangerous weapon, as provided in subdivision (b) of Section 12022 of the Penal Code, in the commission of that offense, Section 217.1 of the Penal Code, Section 236 of the Penal Code, any of the offenses specified in Chapter 9 (commencing with Section 240) of Title 8 of Part 1 of the Penal Code, or any of the offenses specified in subdivision (c) of Section 667.5 of the Penal Code, provided that no record of a misdemeanor conviction shall be transmitted to the requester unless the subject of the request has a total of three or more misdemeanor convictions, or a combined total of three or more misdemeanor and felony convictions, for violations listed in this section within the 10-year period immediately preceding the employer's request or has been incarcerated for any of those convictions within the preceding 10 years.

(b) (1) To give effect to this section, a county or city or city and county or special district shall require each such prospective employee or volunteer to complete an application that inquires as to whether or not that individual has been convicted of any offense specified in subdivision (a). The county or city or city and county or special district shall screen, pursuant to Section 11105.3 of the Penal Code, any such prospective employee or volunteer, having supervisory or disciplinary authority over any minor, for that person's criminal background.

(2) Any local agency requests for Department of Justice records pursuant to this subdivision shall include the prospective employee's or volunteer's fingerprints, which may be taken by the local agency, and any other data specified by the Department of Justice. The request shall be made on a form approved by the Department of Justice. A fee shall not be charged to the local agency for requesting the records of a prospective volunteer pursuant to this subdivision.

(3) A county, city, city and county, or special district may charge a prospective employee or volunteer described in subsection (a) a fee to cover all of the county, city, city and county, or special district's costs attributable to the requirements imposed by this section.